

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE OF PAGES	
2. AMENDMENT/MODIFICATION NUMBER		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY CODE				7. ADMINISTERED BY (If other than Item 6) CODE			
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER	
				☐		9B. DATED (SEE ITEM 11)	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR		16B. UNITED STATES OF AMERICA	
15C. DATE SIGNED		16C. DATE SIGNED	
(Signature of person authorized to sign)		 (Signature of Contracting Officer)	

Previous edition unusable

SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Solicitation/Contract Form Continuation

The following changes have been made:

Miscellaneous text in this section has been added to:

REQUEST FOR INFORMATION:

QUESTION 1: The maps indicate some areas are designated "Area to be Mowed & Bagged" while others are "Area to be Mowed." Can you confirm the approximate acreage breakdown between bagged and non-bagged areas for each applicable location, or provide a total bagged acreage across all items?

RESPONSE 1: The total acreage for bagged areas is equal to approximately seven (7) acres.

QUESTION 2: Are there existing on-site dumpsters at all locations for bagged clippings and green waste disposal, or is the Contractor responsible for arranging off-site disposal at all locations?

RESPONSE 2: The Contractor is responsible for disposing all clippings off-site. Dumpsters will not be provided or available for use.

QUESTION 3: For the Wings Neck Radar Site (Item 2, Location 12), which is described as 7 miles south of the Bourne Bridge, is access restricted, and are there any special access or badging requirements for that location?

RESPONSE 3: There is no restricted access to the Wings Neck site or badging requirements. The Contractor will need to park on the Federally-owned property in front of the radar station to access the site.

QUESTION 4: Can the Contractor perform work at multiple locations on the same day, or does the requirement to "complete 100% of work in one area before moving to the next" preclude splitting crews across locations simultaneously?

RESPONSE 4: The Contractor can perform work at multiple locations on the same day. Work can also take place over multiple days during the "mow week" as long as all areas completed during that same week. Crews can be split across locations, though a minimum of two workers must be at each site at any given time.

QUESTION 5: For Item 4 (Mulching), can you provide the approximate total square footage or acreage of all landscaping beds at Locations 21-24 to allow accurate material estimation?

RESPONSE 5: The total mulching area is equal to less than one (1) acre for locations 21-24, at the 3" depth requirement.

QUESTION 6: Performance Work Statement (PWS) Section B.4 requires mowing "down to the water line". Could the Government provide a more precise definition of this boundary, specifically clarifying if it includes the removal of vegetation growing within the rip-rap or rock armor sections shown in the provided maps?

RESPONSE 6: Mowing does not include the rip rap/vegetation within the rip rap. The Contractor shall mow up to the rip rap and boundaries can be found in the maps included in the attachments.

QUESTION 7: PWS Section B.4 states that "bagging of clippings will be required in marked areas specified in the attached maps". However, the provided maps do not explicitly distinguish between bagging and non-bagging zones; could the Government please identify the specific locations or total acreage where bagging is mandatory?

RESPONSE 7: Only certain areas/locations on the maps require bagging and they are shown in different colors with distinguished boundaries and a key in the bottom corner of the map. The total acreage for bagged areas is equal to approximately seven (7) acres.

QUESTION 8: PWS Section B.7 states that all waste material will be disposed of in "trash/recycle dumpsters located onsite". Conversely, other sections require the "removal and proper disposal of excess material off government property" for landscaping and mulching debris. Please clarify if the Contractor may use onsite dumpsters for grass clippings and weeds, or if all organic debris must be hauled off-site.

RESPONSE 8: The Contractor is responsible for disposing all debris offsite. Section A.7 of the Performance Work Statement has been revised.

QUESTION 9: Per PWS Section A.4.d, a Level 3 Site Safety and Health Officer (SSHO) must be "present at the project site" during all work. Can this SSHO also serve as one of the "minimum of two workers" required on-site by Section B.11.a, or must the SSHO be a dedicated, non-working supervisor?

RESPONSE 9: The SSHO may be one of the workers on site and may count towards the minimum of two worker requirement.

QUESTION 10: The Bid Schedule lists a fixed quantity of 13 mowing cycles for the base year. However, PWS Section A.12 states that payment will be made for "actual services performed". If environmental conditions or a late contract award result in fewer than 13 cycles, will the Government allow for the full 13 cycles to be billed, or is the 13-cycle figure strictly an upper limit for an as-needed requirement?

RESPONSE 10: The quantity of 13 mowing cycles is strictly an upper limit, and actual quantities may be less than 13.

QUESTION 11: PWS Section B.8 requires "undyed bark mulch". To ensure all bidders are pricing a uniform product, could the Government specify the preferred wood species (e.g., Pine, Hemlock, or Cedar)?

RESPONSE 11: Mulch shall be at least 75% hemlock and dark brown in color. The Contractor shall provide a mulch product sheet with their submittals to be reviewed by the Technical Point of Contact prior to purchase and provided within the submittal timeframe requirements. Section B.2. *Submittals*, has been revised to include a product data sheet requirement for mulch.

Continuation of Description

Miscellaneous text in this section has been modified to:

GROUNDS MAINTENANCE

U.S. ARMY CORPS OF ENGINEERS

CAPE COD CANAL

BUZZARDS BAY, MA.

PERFORMANCE WORK STATEMENT (REVISED)

A. GENERAL

1. Performance Requirements - Furnish all equipment, materials, and labor to perform the grounds maintenance services at the Cape Cod Canal Project Area. Services are to be provided in accordance with the following Performance Work Statement. Work shall be performed in a timely manner and to the satisfaction of the Technical Point of Contact.

2. Location - The Cape Cod Canal Project area is located in the towns of Sandwich and Bourne Massachusetts. The office is located at 40 Academy Drive in Buzzards Bay, Massachusetts.

3. Contract Term - The contract period of performance shall be from contract award through 18 April 2027. In addition, the Government may exercise one (1) option year with the same scope of services. The option year would have a period of performance from 19 April 2027 through 31 October 2027.

Site Visit - Contact the Technical Point of Contact, Park Ranger, Justin Nelson 978-318-8552 or Justin.L.Nelson@usace.army.mil to arrange a site visit.

Interested vendors should conduct a site visit to confirm understanding of the scope, inspect existing conditions, and familiarize themselves with the site(s) prior to submitting a quote. No extra payment will be allowed for perceived additional work caused by unfamiliarity with site conditions and requirements.

4. Safety:

a. General:

All work shall be conducted in accordance with the U.S. Army Corps of Engineers (USACE) Safety and Occupational Health Requirements (EM 385-1-1, most recent edition), and all applicable Occupational Safety and Health Administration (OSHA), federal, state, and local safety and health requirements. A copy of EM 385-1-1 can be accessed electronically at the following link:

https://www.publications.usace.army.mil/Portals/76/EM%20385-1-1%20_EFFECTIVE%2015March2024.pdf

Project staff reserve the right to cease work at any time should the safety of employees, Contractors, and/or the public become jeopardized.

b. Accident Prevention Plan (APP):

The Contractor shall prepare a site-specific Accident Prevention Plan. The APP must be written by a Competent Person (CP) and document the specific work processes, equipment, materials to be used, hazards and applicable control measures.

The mandatory ENG Form 6293 (Accident Prevention Plan Worksheet) must be submitted and accepted prior to beginning on site work:

https://www.publications.usace.army.mil/Portals/76/Eng_Form_6293_Aug%202024%20-%20FINAL.pdf

A preparatory meeting shall be conducted by the prime contractor to discuss the APP contents with all effected onsite employees. The Prime Contractor is responsible for informing the subcontractors of the safety provisions under the terms of the contract, the penalties for noncompliance, and inspecting subcontractor operations to ensure that accident prevention responsibilities are being carried out.

Daily safety meetings shall be held and documented. Records shall be available to the Technical Point of Contact upon request.

c. Activity Hazard Analysis (AHA):

An AHA shall be submitted and accepted for each definable feature of work (DFOW) in accordance with EM 385-1-1, Chapter 2-6. A DFOW is defined as any task, which is separate and distinct from other tasks, has separate control requirements, or is identified as different trades or

disciplines. The AHA shall be continuously reviewed and revised to address changing site conditions as appropriate.

For a non-mandatory formatted outline of an AHA, see ENG Form 6206 (Activity Hazard Analysis)

https://www.publications.usace.army.mil/Portals/76/Eng_Form_6206_Sep%202024%20-%20FINAL.pdf

d. Site Safety and Health Officer (SSHO) Requirements:

The Contractor shall employ a minimum of one person to function as a Level 3, SSHO. A Level 3 SSHO is a designated Qualified Person (QP) or Competent Person (CP) with Safety and Occupational Health (SOH) responsibility that meets the requirements of EM 385-1-1, Chapter 2-3. b and 2-4.b.

Level 3 SSHOs must have training, knowledge, and/or experience identifying hazards and implementing controls for the work being performed.

The SSHO shall be present at the project site and be responsible for overseeing the implementation of the prime contractor's SOH program. Contractor shall designate all SSHOs on a mandatory ENG Form 6282 (Site Safety and Health Officer Designation Letter):

[https://www.publications.usace.army.mil/Portals/76/Eng_Form_6282_Site%20Safety%20&%20Health%20Officer%20\(SSHO\)%20Designation%20Letter_2024%20Aug%20-%20FINAL.pdf](https://www.publications.usace.army.mil/Portals/76/Eng_Form_6282_Site%20Safety%20&%20Health%20Officer%20(SSHO)%20Designation%20Letter_2024%20Aug%20-%20FINAL.pdf)

e. First-Aid and CPR Personnel Requirements:

For shifts with multiple employees, provide at least two employees that are certified to administer First Aid and CPR. When employees work alone, they must be certified in First Aid and be provided an effective means of communication to call for assistance in the event of an emergency. Minimum First Aid and CPR qualifications are outlined in EM 385-1-1, Chapter 3-3.

f. Additional Personnel Requirements:

Other Competent Person (CP) or Qualified Persons (QP) may be required per EM 385-1-1 and/or other sections of this Scope of Work, based on the definable features of work for this project.

g. Accident Reporting:

All accidents and near misses shall be investigated by the Contractor and reported to the Technical Point of Contact in accordance with EM 385-1-1, Table 2-1.

The mandatory ENG Form 3394 shall be completed and submitted to the Technical Point of Contact within seven (7) days of an incident: https://www.publications.usace.army.mil/Portals/76/Publications/EngineerForms/Eng_Form_3394_2021Aug.pdf

h. Employee Exposure Data:

The Contractor shall electronically report total employee work hours (including subcontractors) to the Technical Point of Contact by close of business on the 10th calendar day of the following month.

5. Pre-Work Conference - Prior to the start of any work, the Technical Point of Contact will schedule and conduct a pre-work conference. The Contractor's Project Manager and Quality Control Personnel shall be physically present at this meeting. The Contractor shall directly oversee all work on the project and the Project Manager and Quality Control Personnel shall have the authority to act on behalf of the Contractor. This conference will be held at the time and location agreeable to the Government and Contractor. No work may be performed under this contract prior to this conference. The purpose of the conference is to enable the Technical Point of Contact to outline the procedures that will be followed by the Government in its administration of the contract, and to discuss the performance that will be expected from the Contractor. This conference will allow the Contractor an opportunity to ask questions about the Government's administration and inspection of contract work or obtain other pertinent information that might be required. At the pre-work conference the Contractor shall provide the name of the project superintendent with a telephone number for project coordination.

The following is a general list of items for discussion during this Pre-Work Conference:

- i. Authority of the Technical Point of Contact and Quality Assurance Inspectors.
- ii. Contractor's Safety Program (including sub-contractors).
- iii. Accident Prevention Plan and Activity Hazard Analysis
- iv. Safety Meetings (Documented on NED Form 251)
- v. Accident Reporting (ENG Form 3394)
- vi. Safety Data Sheet (SDS) requirements
- vii. Contractor's Equipment
- viii. Correspondence, Communication, Security and Administrative Procedures
- ix. Invoice and payment.

6. Service Areas/ Locations - The service areas for this contract are located at the following locations, see attached maps for specific work areas. The Contractor shall complete 100% of the work required for each service area before moving on to the next service area.

North Side Areas are located on the North Side (Mainland Side) of the Cape Cod Canal:

- a. Cape Cod Canal Field Office [Location 11, 16, & 21]

- b. Buzzards Bay Rec. Area [Locations 10 & 20]
- c. Fields A, B and C [Locations 13, 14 & 15 respectively]
- d. Herring Run [Locations 3, 17 & 22]
- e. Sagamore Rec. Area. [Locations 4, 18 & 24]
- f. Belmont Rock Rec. Area. [Location 2]
- g. Three Panel Sign Rec. Area [Location 1]

South Side Areas are all located on the South Side (Cape Side) of the Cape Cod Canal:

- h. Sandcatcher Rec. Area [Location 6]
- i. Sandwich Rec. Area [Location 5]
- j. Midway Rec. Area [Location 7]
- k. Bourne Rec. Area [Locations 8, 19 & 23]
- l. Tidal Flats Rec. Area. [Location 9]
- m. Wings Neck Radar Site (7 miles south of the Bourne Bridge) [Location 12]

7. Schedule - Services will be performed from 20 April 2026 or contract award date if later through 31 October 2026. In addition, the Government may exercise one (1) optional year with the same performance requirements. Option year one (1) would include the performance of services from 19 April 2027 through 31 October 2027.

The Pre-Work Conference shall be completed within 7 days of Contract Award. All pre-work submittals shall be submitted within 7 days of contract award. The Government reserves up to 7 days for review and acceptance on each submittal/resubmittal from the date of receipt. If revisions are necessary to the submittals, the Contractor shall make such revisions and shall be resubmitted to the Government in an acceptable form within 7 days of the Government's response, unless additional time is granted by the Government in writing. No field work may proceed prior to the acceptance of pre-work submittals.

a. "Recreation Area" mowing and trimming services shall be conducted one (1) time in the month of April and once every other week between May and October not to exceed thirteen (13) mowing services during the contract period of performance. Exact service dates to be coordinated w/ Technical Point of Contact.

Note: If contract award occurs after April 2026, services shall begin with the May schedule.

b. "Field mowing" services shall be conducted one (1) time in the month of April and once every other week between May and October not to exceed Thirteen (13) mowing services during the contract period of performance. Exact service dates to be coordinated w/ Technical Point of Contact.

Note: If contract award occurs after April 2026, services shall begin with the May schedule.

c. "Landscaping" services shall be conducted three (3) times during the period of performance. Trimming shrubs/ bushes and weeding services shall be conducted one (1) time during the month of May, one (1) time in July, and one (1) time in September. Exact service dates to be coordinated w/ Technical Point of Contact. See section "B. Technical Requirements" below for particulars.

d. "Mulching" A one (1) time mulching service will be performed during the May landscaping service. See section "B. Technical Requirements" below for particulars. Exact service dates to be coordinated w/ Technical Point of Contact.

e. Mowing and trimming will not be permitted before 6:00 am or after 5:00 pm within park recreation areas unless approved in advance by the Technical Point of Contact. No mowing or trimming shall be conducted on Saturdays, Sundays, and holidays unless approved in advance by the Technical Point of Contact. The exception will be at the Cape Cod Canal Field Office where weekend work will be allowed.

*Table 1.0 below identifies the line-item number, description, and frequency of the services to be performed at each location:

TABLE 1.0

Item Numbers	Description	Frequency
Item 1 Locations 1 - 11	Recreation Area Mowing/String Trimming Bi-Weekly (Approx. 27.4 Acres Total) Ground Maintenance Maps Numbers: 1. Three Panel Sign (0.72 acres) 2. Belmont Rock (0.1 acres) 3. Herring Run (1.63 acres)	Mowing and trimming services shall be conducted one (1) time during the month of April and one (1) time every two (2) weeks between May and October. Not to exceed thirteen (13) mowing services during the

	4. Sagamore Rec. Area (0.68 acres) 5. Sandwich Rec. Area (5.14 acres) 6. Sandcatcher Rec. Area (4.2 acres) 7. Midway Rec. Area (5.8 acres) 8. Bourne Rec. Area South (1.65 acres) 9. Tidal Flats Rec Area (1.32 acres) 10. Buzzards Bay Rec Area (1.76 acres) 11. Canal Field Office (4.43 acres)	contract period of performance.
Item 2 Locations 12 - 15	Field Mowing's Bi-Weekly (Approx. 6.5 Acres Total) Ground Maintenance Map Numbers: 1. Wings Neck Radar Site (0.48 acres) 2. Field A, North Service Road (4.5 acres) 3. Field B, North Service Road (0.62 acres) 4. Field C, Sagamore (0.91 acres)	Field mowing shall be conducted one (1) time during the month of April and one (1) time every two (2) weeks between May and October. Not to exceed Thirteen (13) mowing services during the contract period of performance.
Item 3 Locations 16 - 20	Landscaping Services Ground Maintenance Maps Numbers: 1. Canal Field Office 2. Herring Run 3. Sagamore Rec. Area 4. Bourne Rec. Area 5. Buzzards Bay Rec. Area	Three (3) Scheduled services for trimming shrubs/ bushes and weeding. May (1st Week) July (2nd Week) September (2nd Week) Exact service dates to be Coordinated w Technical Point of Contact

Item 4	Mulching Service	Mulch areas specified one (1) time during the month of May.
Locations	Ground Maintenance Maps Numbers:	
21 - 24	1. Canal Field Office 2. Herring Run Rec Area 3. Bourne Rec. Area 4. Sagamore Recreation Area	Exact service date to be Coordinated Technical Point of Contact

8. Permits - The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses, permits, and letters of certification. The Contractor shall comply with any applicable Federal, State, County, and Municipal laws, codes, and regulations in connection with the performance of the work specified under this contract.

9. Security - The contractor will comply with all established security policies at the Cape Cod Canal. Due to periods of heightened security that may affect the access to the areas covered under this contract, areas may be subject to periodic closures or evacuations, which in turn may reduce or inhibit the Contractor's ability to access certain areas. During periods of heightened security, the Government reserves the right, at any time, to close any property or portion of property and reschedule and/or cancel any subsequent service in an area. The Contractor shall be notified as soon as practical of any such closure.

10. Hazardous Weather- The Contractor shall comply with established hazardous weather policies at the Cape Cod Canal. In the event of hazardous weather, areas may be subject to periodic closures or evacuations. The Contractor will be notified as soon as possible in the event of closures due to hazardous weather conditions. All contractor property must be removed from Government property when an evacuation notice is given. It is also the contractor's responsibility to find a safe and suitable evacuation site upon notice to evacuate.

11. Contractor Conduct - The work area is located on Federal property across multiple recreation areas. Contractors and employees must comply with CFR 36 Rules and Regulations. Contractors and employees must always act in a professional manner. Alcohol and firearms are prohibited on project grounds.

12. Payment - The Contractor shall furnish the Technical Point of Contact with one invoice per month or at the completion of services. The invoice shall include the invoice date, contract number,

dates of service, description of work, quantities, and total amount due per line item. The invoice must also include the company letterhead, and this must match the data that is registered in the System for Award Management (SAM) registry. Payment shall be made monthly for the actual services performed at the applicable contract unit price.

All invoices shall be emailed to the Technical Point of Contact , Justin Nelson at: Justin.L.Nelson@usace.army.mil

NOTE: Final Payment may be held until the Contractor has returned all issued keys to the Technical Point of Contact at the completion of work. Keys are required to be physically handed or mailed to the Technical Point of Contact . The Contractor assumes all responsibility for loss (which may include the cost of rekeying the applicable project).

B. Technical Requirements

General Requirement:

1. Summary - The contractor's work and responsibility shall include, but not be limited to all job planning, programming, scheduling, administration, inspection, personnel, labor, equipment, vehicles, fuel, materials, supplies, supervision, transportation, and quality control necessary to perform the various services required herein at the Cape Cod Canal Project Area. The Canal Project Area includes approximately 34 acres to be mowed/string-trimmed once during the month of April and bi-weekly (May - October) in addition to scheduled landscaping services to include weeding, bush trimming, and mulching.
2. Submittals - Although the Government reviews submissions required by this Performance Work Statement, it is emphasized that the Contractor's work must be completed using proper internal controls and review procedures. The Government reserves up to 7 days for review and acceptance on each submittal/resubmittal from the date of receipt. If revisions are necessary to the submittals, the Contractor shall make such revisions and shall resubmit to the Government within 7 days of the Government's response, unless additional time is granted by the Government in writing.

The documents identified below must be prepared in accordance with the applicable standards and submitted to the Technical Point of Contact for review and accepted by the Government.

- a. Pre-Work Submittals: Submitted within 7 days of contract award. Submittals must be accepted prior to the commencement of any field work.
 - i. ENG Form 6293 (Accident Prevention Plan Worksheet)
 - ii. Activity Hazard Analysis; non-mandatory template available: ENG Form 6206 (Activity Hazard Analysis)
 - iii. ENG Form 6282 (Site Safety and Health Officer Designation Letter)
 - iv. First-Aid and CPR Personnel requirements

v. Mulch Product Sheets

3. References - All work shall be in conformance with all appropriate federal, state, and local regulations.

4. Other Contracts - The Government may undertake or award other contracts for additional work not related to this contract, and the Contractor shall fully cooperate with other Contractors and Government employees. The contractor shall not commit or permit any act, which will interfere with the performance of work by another contractor, or by Government employees.

5. Preferred Sequence for Work Schedules - The Technical Point of Contact shall provide the Contractor with a preferred sequence, or order, of work. (Note: The Contractor must provide sufficient personnel and equipment to accomplish services stated in the contract). The Contractor will then be required to submit a work schedule for each service, and approximate times for beginning and ending of each required service listed. Any proposed change to an approved schedule must be submitted in writing, coordinated, and approved by the Technical Point of Contact in advance of actual schedule changes.

6. Damage to Government and Private Property - The Contractor shall be responsible for restoring all Government facilities or structures damaged because of the contractor's operation. The contractor shall also be responsible for any damage to private property or injury to any person because of the Contractor's operation. The contractor shall notify the Technical Point of Contact immediately of damage to Government and private property and injury to any person resulting from the contractor's operation. All trucks and/or trailers will be driven on existing roads only and not across or through any existing park facilities. The Contractor may be required to restore any landscape features (shrubs, flowers, grasses, etc.), which are damaged or destroyed by the contractor's operation. Damaged or destroyed grass areas shall be re-planted as directed by the Technical Point of Contact, and shrubs and flowers which are damaged or destroyed shall be replaced from nursery stock of like size and kind.

7. Clean Up and Waste Disposal - The contractor shall practice good housekeeping to maintain a safe job site. The contractor shall keep the work area free from accumulation of waste materials. Upon completing work in an area, the contractor shall remove any tools, equipment, and materials that are not the property of the Government. All disturbed areas resulting from contractor activities shall be restored by the contractor to the satisfaction of the Technical Point of Contact. ~~All waste material will be disposed of in trash/recycle dumpsters located onsite and~~ **It is the Contractor's responsibility to dispose of all waste materials offsite and in accordance with all Federal, State, and Local regulations.**

8. Environmental Protection - The contractor will take necessary steps to ensure all Federal, State, and Local environmental regulatory requirements are met at no additional cost to the Government. Assurance of compliance with this section by subcontractors shall be the responsibility of the contractor.

9. Sustainability:

The United States Department of Agriculture (USDA) designates certain bio-based products for federal procurement and specifies minimum bio-based content levels for those products. Any designated product that is being offered or supplied under this contract shall meet USDA BioPreferred's minimum bio-based content level. Visit the BioPreferred web site <https://www.biopreferred.gov/BioPreferred/faces/pages/ProductCategories.xhtml> for the complete list of designated products and the associated minimum bio-based content level requirements.

10. Personal Protective Equipment - It is the contractor's responsibility to furnish and supply personnel with the proper personal protective equipment necessary for performing the work.

a. Protective Equipment-All personnel must use appropriate personal protective equipment including but not limited to; eye, hearing, hand, and foot protection) and wear a high visibility safety vest while performing services on Government Property.

11. Contractor's Personnel:

a. Minimum Personnel Requirements - The Contractor shall provide an adequate number of fully qualified personnel to perform the specified service properly and efficiently within the time limits specified. For safety purposes, a minimum of two workers are required on site at all times. At least one (1) contractor employee will be able to communicate with project staff effectively and efficiently.

b. Contact Information-The Contractor shall provide a list of the names and contact phone numbers for all employees prior to them working on Government Property.

c. Employee Conduct - The Contractor shall be responsible for seeing that the firm's employees strictly comply with all Federal, State, and Municipal laws. Any personnel activity, which, in the opinion of the Government, is deemed detrimental to the performance of the contract may result in the removal of Contractor employee/employees.

Examples of unbecoming actions or conduct include but are not limited to the following:

i. Cursing, harassment, or discrimination of and/or unwarranted physical contact with visitors, USACE personnel, or other contractors

ii. Recurring written and/or verbal complaints from visitors, USACE personnel, or other contractors.

iii. Unsafe operation of vehicles while on USACE property.

d. Removal of Contractor's Employees - The Technical Point of Contact may require the Contractor to immediately remove from the work site any employee of the Contractor or subcontractor, who, in the opinion of the Technical Point of Contact, endangers persons or property, or whose physical or mental condition is such that it would impair the employee's ability to satisfactorily perform assigned work. Notification to the Contractor shall be promptly made in writing if time and circumstances permit. Otherwise, notification shall be verbal or by telephone and shall be confirmed in writing as soon as possible. No such removal, however, will reduce the

Contractor's obligation to perform all work required under this contract, and immediate replacement will be made as required. This requirement shall not be made the basis of any claim for compensation or damages against the United States or any of its officers or agents.

12. Quality Assurance - The contractor is responsible for the quality control of the contract work. The contractor shall establish and maintain a quality control system to assure compliance with the contract requirements. The government has the right to inspect and test all items called for by the contract, to the extent practicable at all times and at all places during the term of the contract.

13. Inspections:

a. Contractor Quality Control - The Contractor is responsible for establishing and maintaining an adequate quality control system to satisfactorily inspect and ensure that all work performed by the Contractor's organization in each separate service is in full compliance with this contract and the instructions, provisions, specifications, drawings, and maps herein.

b. General Inspection - Upon the completion of each mowing cycle, the Contractor will perform an inspection of all areas under this contract to ensure compliance with the performance requirements. The Contractor or his representative must be able to commit personnel, equipment, and resources to correct deficiencies. The Services Inspection Form (form to be provided to the Contractor at the pre-work conference) will be submitted to the Technical Point of Contact to allow verification of results for payment. A Government representative may accompany the contractor on an inspection of completed work and will identify any contract deficiencies. Any deficiencies noted will be corrected within original contract time frames or appropriate deductions in payment will be made for work not corrected.

c. Equipment/Supplies Inspections - The Technical Point of Contact may inspect required equipment and supplies at any time when in use on Government property. Any equipment found deficient shall be removed from service immediately until faulty conditions have been corrected and passed by the Technical Point of Contact. No such removal will reduce the Contractor's obligation to perform all work required within the time scheduled under this contract. This requirement shall not be made the basis of any claim for compensation or damages against the United States or any of its officers or agents.

d. Government Inspections - The Government will monitor the Contractor's service performance and make deductions accordingly for work not corrected with the time permitted

14. Receiving and Storing Materials - Government employees will not receive or store any materials or supplies for the contractor.

15. Omissions - This contract may not cover all specified activities, steps, and procedures required to supply the contract product. In case of omission, normal industry, state, or federal standards, practices, specifications, and/or guides shall prevail. In no instance shall an omission be reason to produce less than an acceptable product.

Equipment

1. Condition of Equipment- All equipment used to perform work under this contract must be in good operating and mechanical condition and comply with EM 385-1-1, Army Corps of Engineers Safety and Health Requirements. A regular schedule of preventive maintenance must be followed on all equipment. All vehicles utilized under this contract will be presentable, serviceable, and shall comply with safety standards. The Contractor's vehicles will be clearly marked with the business name while in all service areas.

2. Type of Equipment

a. Mowers shall be gasoline or electric powered self-propelled rotary cutter style. All mowers must be equipped with the original manufacturers' protective devices in place to prevent the discharge of objects which may cause injury to people or damage to property. The contractor will be responsible for any injuries or destruction of property as a result of failing to operate equipment without all proper safety guards in place. Contractor will also be responsible for damage to government property as a result of careless or negligent operation of equipment including turf damage, collisions with park features and facilities, destruction of ornamental or planted trees, shrub and flower beds, etc.

b. In areas where it is not possible to use a standard size mower, the contractor is encouraged to use small mowing equipment such as; push mower, string trimmer and other small power-mowing equipment.

c. String trimmers may be gasoline or electrically operated and equipped with the original manufacturers' protective devices in place to protect the safety of visitors and equipment operators. Trimmers shall only be equipped with nylon string material. Use of steel or other types of cord that will cause damage to trees, shrubs, people or property is prohibited.

d. If mowers are operating adjacent to public and private property, they are required to use mower bagging devices to further prevent any damage to persons or property as deemed appropriate by the Technical Point of Contact.

3. Requirements

a. The Contractor shall survey the park or area and report all damage or vandalism to the Technical Point of Contact prior to commencement of service in each area. Any damage found thereafter by the Government's inspector that has not been previously reported by the Contractor shall be assumed to be damage caused by the Contractor's operation, and shall be repaired, replaced, or deducted from the invoice, as determined by the Technical Point of Contact, at no cost to the Government.

b. The Canal experiences large volumes of public recreation at the recreation areas and along the services roads. The Contractor will prioritize the safety of the public while performing work.

c. The Contractor should to the fullest extent possible, avoid mowing during periods of peak visitation to avoid interference with the recreating public. The contractor should avoid all mowing and trimming activities around visitors or their personal property in developed and non-developed locations during the middle part of the day.

d. USACE employees may be in the area for the purpose of performing daily duties. The contractor will cooperate fully with all staff in the area and shall not impede the work of others in any way. Personnel shall not block gates or access points.

4. Mowing Requirements: Cut and power mow grass to a height of not more than two and one-half (2-1/2) inches or less than two (2) inches in each area around each facility and down to the water line. Mowing shall be uniform with no uncut or uneven areas resulting from mowing, overlap, wheel rollover, etc. Mowing shall be conducted in such a manner so there is no wheel damage to the turf or any damage to concrete edges, signs, fences, or trees. Mowing shall not take place close enough to facilities or vehicles to cause damage. Bagging of clippings will be required in marked areas specified in the attached maps. It is the contractor's responsibility to remove and dispose of grass clippings from these specified areas off site following each mow cycle.

5. Trimming Requirements: Trim grass to a height of not more than two and one-half (2-1/2) inches or less than two (2) inches in the area around each facility. Trimming and edging shall be conducted in such a manner so there is no damage to the turf or any damage to concrete edges, signs, fences, or trees. Areas adjacent to facilities must be trimmed using other types of equipment such as string trimmers. Trimming shall be accomplished around all vertical objects such as buildings, guard posts, fences, tables, trash receptacles, electrical pedestals, water fountains, hose bibs, cookers/grills, etc. Trimming shall be done at a minimum each time mowing is performed. The Technical Point of Contact may determine in which area/facility trimming is required in conjunction with maintenance work and where mowing services are not required.

6. Grounds Cleaning: Grounds cleaning will be performed in conjunction with scheduled mowing services, in order to leave the mowing area with an overall neat and clean appearance. The grounds cleaning shall remove all obvious and noticeable trash and litter from the mowing limits which are designated as the mowing boundaries on the location maps attached to these specifications. All trash and litter shall be removed and properly disposed of in bulk refuse receptacles. All clippings from mowing and trimming shall be removed from mow areas, including sidewalks, parking lots, picnic and bench pads, and walkways.

7. Landscaping: Landscaping will include trimming and shaping shrubs. Shrubs will be trimmed 8 to 12 inches away from buildings, walkways, handrails, and stairs. Shrubs will be trimmed back so as not to overgrow other shrubs in the landscaped areas. Weeds, leaves, needles branches, and litter will be removed from the shrub beds. Weeds will be removed from sidewalks, patio areas as well as from curbing including curb stops in respective areas. Contractor shall be responsible for removal and proper disposal of excess material off government property.

8. Mulching - The contractor shall supply and spread new undyed bark mulch to all landscaping beds such that a minimum depth of three (3) inches is achieved. New mulching shall achieve a

uniform level area within the landscaping beds. Any mulch that falls on surfaces not designated for application such as walkways, sidewalks, roadways, parking areas, kiosk pads, or grass shall be removed and cleaned.

9. Restrictions - All mowing and trimming required in an area shall be completed and inspected by the Contractor's Quality Control Inspector prior to beginning work in another area. The Contractor shall notify the Technical Point of Contact or immediately upon completion of services, so that USACE may inspect the work. The Contractor shall be responsible for correction of any and all deficiencies discovered by the Quality Assurance inspection within twenty-four (24) hours at no additional cost to the Government.

10. Changes To Frequency and/or Quantities - The Government reserves the option, should it become necessary, to decrease or increase service frequencies and/or facility quantities in any or all designated project areas. The Government may also, at any time during the duration of this contract, close any property or portion of the property and delete any subsequent service in the closed property or area. The Contractor shall be given adequate notification to prepare for either contingency. This decrease or increase will be deducted from or paid for in accordance with the bidding schedule or a negotiated cost. Any increase in quantity or frequency of services must be negotiated with the Contracting Officer. The Contractor shall not perform any additional services until the issuance of a formal modification signed by the Contracting Officer. In addition, the Technical Point of Contact may, on special occasions decide to reschedule a service frequency in order to avoid conflict with visitation or unnecessary expense. The Contractor shall be given at least 24 hours' notice.